

SPECIAL ISSUE



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GAZETTE NOTICE No. 380

THE JUDICIAL SERVICE ACT

(Cap. 8A)

THE JUDICIARY

VACANCY IN THE OFFICE OF JUDGE OF THE SUPREME COURT OF KENYA (1 POST)

PURSUANT to Paragraph 3 Part II, First Schedule of the Judicial Service Act, I, Martha Karambu Koome, Chief Justice of the Republic of Kenya, for and on behalf of the Judiciary of Kenya, declare a vacancy in the Office of Judge of the Supreme Court of Kenya.

Job details:

Ref: V/No. 1/2026

Job title: Judge of the Supreme Court

Number of posts: One (1) post

Tenure of office: Retirement at the age of seventy (70) years with the option for early retirement after attaining the age of sixty – five (65) years in accordance with Article 167 (1) of the Constitution.

Remuneration and Benefits:

Based on guidelines by the Salaries and Remuneration Commission of Kenya.

Gross Monthly Remuneration Package excluding benefits is Minimum of KSh. 956,192 and a Maximum of KSh.1,268,996.

Functions of the Judge of the Supreme Court:

A Judge of the Supreme Court shall serve in the Supreme Court of Kenya. The function and jurisdiction of the Court is provided for under Article 163 (3), 4, 5 and 6, Article 168 (8) and Article 58 (5) of the Constitution, namely:

1. Have exclusive original jurisdiction to hear and determine disputes relating to the elections to the office of President arising under Article 140

2. To hear and determine in its appellate jurisdiction appeals from—

(a) the Court of Appeal; and

(b) any other Court or Tribunal as prescribed by national legislation.

3. Give an advisory opinion at the request of the National Government, any State organ, or any County Government with respect to any matter concerning County Government.

4. Hear and determine an appeal by a judge aggrieved by a decision of a Tribunal formed under Article 168 of the Constitution to consider the judge's removal.

5. Consider applications emanating from a declaration of a state of emergency.

Constitutional and Statutory Requirements for Appointment:

For appointment to the position of Judge of the Supreme Court, the applicant must possess the following minimum qualifications set out in Article 166 (2) and (3) Constitution, namely:

1. Hold a law degree from a recognized university, or be an advocate of the High Court of Kenya, or possess an equivalent qualification in a Common-law jurisdiction;

2. (a) Have at least fifteen (15) years experience as a superior court judge;

or

(b) Have at least fifteen (15) years' experience as a distinguished academic, judicial officer, legal practitioner or such experience in other relevant legal field;

or

(c) Have held the qualifications specified in paragraphs 2 (a) and (b) above for period amounting, in the aggregate, to fifteen (15) years;

(d) Possess the experience required under paragraph 2 (a), (b) and (c) above as applicable, irrespective of whether that experience was gained in Kenya or in another commonwealth common-law jurisdiction; and

3. Have a high moral character, integrity and impartiality (meet the requirements of Chapter Six of the Constitution on Leadership and Integrity).

In addition, the applicants should demonstrate a high degree of professional competence, communication skills, fairness, good

temperament, good judgment, wide breath of both legal and life experience and demonstrable commitment to public and community service.

The appointment shall be made in accordance with Article 166 (1) (b), (2) and (3) of the Constitution and Section 30, Part V and the First Schedule of the Judicial Service Act, No. 1 of 2011.

Interested and qualified persons are invited to visit the Commission's jobs portal: <https://jsc.go.ke/jobs-2/>. for instructions on how to apply.

Dated the 9th January, 2026.

MARTHA KARAMBU KOOME,
Chief Justice.